

**untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

**Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-07221

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. RUDY CACHO

\*HEARING ON MOTION IN RE: MO FOR AN ORDER THAT MATTERS IN REQ FOR ADMIS OF TRU OF FACTS BE DEEMED ADMIT

FILED BY: PORTFOLIO RECOVERY ASSOCIATES, LLC

**\*TENTATIVE RULING:\***

**Background**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eleven, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant's attorney with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

**Analysis**

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed

admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

### **Disposition**

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

10. 9:00 AM CASE NUMBER: L25-09728

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ARLETTE ORDAZ

\*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

FILED BY: JPMORGAN CHASE BANK N.A.

**\*TENTATIVE RULING:\***

### **Background**

Plaintiff filed an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight, in Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

### **Analysis**